



CHAPTER vii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Greenock Port and Harbours. [2nd July 1941.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Greenock Port and Harbours Order Confirmation Act 1941.

Short title.

SCHEDULE.

GREENOCK PORT AND HARBOURS.

Provisional Order to authorise the Trustees of the Port and Harbours of Greenock to create a fund for meeting expenditure upon works of repair renewal and maintenance deferred owing to war conditions to authorise the Trustees to levy rates on seaplanes floating docks and similar craft and for other purposes.

3 & 4 Geo. 5.
c. xlii.

WHEREAS by the Greenock Port and Harbours Consolidation Act 1913 (hereinafter referred to as "the Act of 1913") the Acts relating to the Port and Harbours of Greenock were consolidated with amendments and the said port and harbours were vested in the Trustees of the Port and Harbours of Greenock (hereinafter called "the Trustees") :

And whereas by virtue of the powers conferred on the Trustees by the Act of 1913 the Greenock Port and Harbours Order 1920 and the Greenock Port and Harbours Order 1922 the Trustees manage maintain work and use the said port and harbours and levy charge and recover rates dues and charges in respect of the use thereof :

And whereas owing to circumstances arising out of the present war the Trustees meantime are unable to execute works of repair renewal and maintenance of their undertaking the cost of which works would be chargeable upon the rates and other revenues of the Trustees undertaking under the provisions of the Act of 1913 :

And whereas it is expedient that the Trustees should be authorised to create a suspense fund to be expended as hereinafter provided in this Order :

And whereas it is expedient that the Trustees should be authorised to levy rates on seaplanes floating docks and similar craft as hereinafter provided in this Order :

And whereas it is expedient that the other provisions contained in this Order should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

26 Geo. 5. &
1 Edw. 8.
c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1.—(1) This Order may be cited as the Greenock Port and Harbours Order 1941 and shall commence and have effect from the date of the passing of the Act confirming the same.

Short title
commence-
ment and
citation.

(2) The Greenock Port and Harbours Consolidation Act 1913 the Greenock Port and Harbours Order 1920, the Greenock Port and Harbours Order 1922 and this Order may be cited together as the Greenock Port and Harbours Acts 1913 to 1941.

2. In this Order unless there be something in the subject or context inconsistent with or repugnant to such construction—

Interpre-
tation.

(a) The several words and expressions to which meanings are assigned by the Acts partially incorporated herewith or by the Harbour Acts or either of them have the same respective meanings; and

(b) The following words and expressions have the meanings assigned to them in this section (that is to say):—

“the Harbour Acts” means the Act of 1913 the Greenock Port and Harbours Order 1920 and the Greenock Port and Harbours Order 1922;

“seaplane” includes a flying boat and any other aircraft designed to manoeuvre on the water;

“vessel” includes a seaplane on the surface of the water.

3. Subject to the provisions of this Order section 5 (Incorporation of provisions of Commissioners Clauses Act) and section 6 (Incorporation of provisions of Harbours Clauses Act) of the Act of 1913 shall so far as applicable and not varied by or inconsistent with this Order apply for the purposes of this Order as if they had been re-enacted herein. Provided that the expression “vessel” in section 28 of the Harbours Docks and Piers Clauses Act 1847 shall include any seaplane when on the surface of the water any floating dock and any vessel of exceptional construction or method of propulsion belonging to or employed in the service of His Majesty. Provided further that nothing in the Harbours Docks and Piers Clauses Act 1847 or this Order shall in any circumstances require or authorise the harbour master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

Incorporation
of Acts.

10 & 11 Vict.
c. 27.

4. Notwithstanding anything contained in the Harbour Acts or any of them—

Power to
Trustees to
create &c.
fund for
purposes of
deferred
repairs &c.

(1) The Trustees may if and so long as they think fit (inclusive of the Trustees financial year ending on the thirtieth day of June nineteen hundred and forty-one)

set aside from time to time out of the rates and other revenues of the port and harbours such amounts as the Trustees may fix to form a suspense fund (hereinafter in this section referred to as "the suspense fund") to be applied as hereinafter in this section provided:

(2) The amounts so to be set aside shall thereupon be credited to the suspense fund Provided that the amounts so set aside in any year shall not exceed the amount which the engineer or consulting engineer for the time being acting as the Trustees harbour engineer shall certify to be the cost of works of repair renewal and maintenance in so far as not already provided for the execution of which owing to circumstances arising out of the present war has been deferred:

(3) The suspense fund shall from time to time be applied by the Trustees as and when in their discretion they find it expedient and possible for effecting upon any part of the port and harbours works of repair renewal and maintenance the execution of which owing to circumstances arising out of the present war has been deferred Provided that in so far as not expended for the purposes aforesaid the suspense fund may be applied by the Trustees at any time as they shall determine under the power contained in subsection (4) hereof:

(4) The amounts to be set aside for the suspense fund and the application thereof shall be determined by the Trustees from time to time by a resolution passed at a meeting of the Trustees by a majority of at least two-thirds of the whole number of the Trustees:

(5) The Trustees may deposit the moneys from time to time constituting the suspense fund in any bank or invest the same in any securities or investments competent to Trustees under the Trusts (Scotland) Act 1921 or any Act amending the same and accumulate the interest thereof with the principal Provided that the Trustees shall keep a special account applicable to the suspense fund which shall be balanced annually:

(6) Head "Secondly" of section 185 (Application of revenue) of the Act of 1913 shall be read and construed as though in addition to the purposes mentioned in the said head it included the amounts set aside for the suspense fund in terms of this section:

(7) In this section "works of repair renewal and maintenance" mean works which would under the Act of 1913 be a charge against the rates and other revenues of the port and harbours.

5. The following sections of the Act of 1913 (viz.) :—

Application
of certain
provisions of
Act of 1913.

Section 158 (Corporation shall guarantee instalments &c.
on security of guarantee rate) ;

Section 159 (Payment by Corporation under the guarantee
to be made on requisition by the Trustees) :

Provided that the suspense fund autho-
rised by this Order shall be deemed to be
part of the necessary expenses of working
management and maintenance referred to
in the said section ;

Section 160 (Auditor to certify what are properly revenue
payments) ;

Section 161 (Guarantee rate) ;

Section 162 (Assessment and levying of guarantee rate) ;
and

Section 163 (Power to Corporation to borrow temporarily) ;
shall extend and apply as if the same were with all necessary
modifications consequent on the powers conferred by this Order
expressly re-enacted in this Order.

6.—(1) Subject to the provisions of the Air Navigation Acts Rates on
1920 to 1938 and of any order made under or in pursuance seaplanes &c.
thereof the Trustees may demand levy collect and receive on
and in respect of seaplanes entering or using the port and
harbours such reasonable rates as may from time to time be
approved by the Minister of War Transport which rates shall be in
lieu of the rates leviable by the Trustees on or in respect of
vessels.

(2) The Trustees may demand levy collect and receive on or
in respect of floating docks or vessels of exceptional construction
or method of propulsion entering or using or departing from the
port and harbours such reasonable rates as may from time to
time be fixed by the Trustees.

7. The costs charges and expenses preliminary to and of and Costs of
incidental to the preparing for obtaining and confirming this Order.
Order or otherwise in relation thereto shall be paid by the
Trustees out of the revenues of the port and harbours.

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